

ELIZABETH II



1981 CHAPTER v

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Peterhead Harbours. [29th January 1981]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed is hereby confirmed. of Order in
schedule.
2. This Act may be cited as the Peterhead Harbours Order Short title.
Confirmation Act 1981.

SCHEDULE

PETERHEAD HARBOURS

Provisional Order to confer further powers on the Trustees of the Harbours of Peterhead with respect to their power to borrow money; and for other purposes.

1873
c. clvii.

Whereas by the Peterhead Harbours Act 1873 the trustees therein named and appointed to be elected as therein provided (hereinafter called the "Trustees") were incorporated and were authorised to construct the harbour and other works therein described and to raise money for those purposes:

1921
c. xcvi.

And whereas by the Peterhead Harbours Order 1921 the Trustees were authorised to increase their borrowing powers in addition to any money borrowed by them from time to time for the purposes of the harbours to such sum or sums of money not exceeding in the whole £400,000 as the Minister of Transport might sanction:

And whereas the total of their existing authorised borrowing amounts to £648,000:

And whereas it is expedient that the Trustees should be authorised to increase their borrowing as is provided in this Order:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title
and citation.

1. This Order may be cited for all purposes as the Peterhead Harbours Order 1980 and this Order and the Peterhead Harbours Acts 1873 to 1921 may be cited together as the Peterhead Harbours Acts and Orders 1873 to 1980.

Power to
borrow.

2.—(1) The Trustees may from time to time borrow upon the security of the assets for the time being and of the revenues of the Trustees, by any methods they see fit—

(a) such sums of money as they think necessary not exceeding in the aggregate £10,000,000; and

(b) with the consent of the Secretary of State such further sums of money as they may require.

(2) Moneys borrowed by the Trustees under this section shall be applied only to purposes to which capital money is properly applicable.

(3) For the purpose of the last foregoing subsection, but without prejudice to the generality thereof, purposes to which capital money is properly applicable shall be deemed to include—

- (a) the payment of any interest falling due within five years immediately following the date of the borrowing on any sum of money borrowed by the Trustees under this section; and
- (b) the repayment within 12 months from the date of borrowing of any sum for the time being outstanding by way of principal on any amount previously borrowed.

(4) The powers of borrowing conferred by this section shall supersede any powers of borrowing conferred by the Peterhead Harbours Acts 1873 to 1921 so far as those powers have not been exercised prior to the commencement of this Order.

(5) Sections 56 and 57 of the Order of 1921 shall cease to have effect.

(6) A person lending money to the Trustees on any form of security or taking or holding any such security shall not be bound to inquire whether the borrowing of the money is or was legal or regular or whether the money raised was properly applied and shall not be prejudiced by any illegality or irregularity in the matters aforesaid or by the misapplication or non-application of any such money.

3. It shall not be lawful to exercise the powers of borrowing conferred by this Order otherwise than in compliance with any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
powers of
Treasury.
1946 c. 58.

4. The costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order and otherwise in relation thereto, shall be paid by the Trustees.

Costs of
Order.

*Peterhead Harbours Order Confirmation
Act 1981*

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